

defendant acted as a judge, and is not liable to an action, secondly, that the finding of the jury, except where in favour of the defendant, is immaterial: the said plaintiff being at liberty, on such cause being shewn as aforesaid, to raise any points contended for by the plaintiff on the motion already made to the court on behalf of the said plaintiff,—each of the said parties being at liberty to appeal on all questions fit for the court of error: And it is further ordered, that, at the time of such cause being shewn as aforesaid, the said plaintiff shall be at liberty to insist,—first, that the judge presiding at the said trial misdirected the jury in holding that a warrant in writing was not necessary,—secondly, that the said judge put a wrong construction upon the charter,—thirdly, that he ought to have told the jury that there was no legal hearing or examination by the vice-chancellor,—fourthly, that he ought to have told the jury that the prison in question was a private gaol, and that the vice-chancellor had no right to commit to it: the said plaintiff to be in the same position as to setting aside the said verdict found in this cause, or appealing to the court of error, as though a separate rule had been granted by the court to the said plaintiff on the grounds above mentioned."

Lush, Q. C., Welsby, and Couch, in Easter Term last, shewed cause. They submitted, that the legal effect of the finding of the jury was, a negation of the material part of the third plea, to sustain which it was essential for the defendant to shew that he had duly heard and examined and was satisfied of the guilt of the accused (*The King v. Simpson*, 1 Stra. 45, *Capel v. Child*, 2 C. & J. 558, per Lord Tenterden in *Basten v. Carter*, 3 B. & C. 649, 652, 5 D. & R. 558): that there cannot legally be an imprisonment without a record or a con-[543]-viction and a warrant (Paley on Convictions, 215, 388, 1 Hale's P. C. 583, *The King v. Beck*, 1 Stra. 127, per Yates, J., in *Strickland v. Ward*, 7 T. R. 631, n., 633, n., *Ex parte Bassett*, 6 Q. B. 481, 1 New Sess. Cas. 337, *In re Nesbitt*, 1 New Sess. Cas. 366, *Prickett v. Gratrix*, 8 Q. B. 1021, 2 New Sess. Cas. 429), which warrant must exist at the time, and cannot be drawn up afterwards (*Mostyn v. Fabrigas*, 1 Cowp. 161, *Hutchinson v. Lowndes*, 4 B. & Ad. 118), though a conviction may: that the charter granted by Queen Elizabeth to the university, or the statute which confirmed it, did not invest the vice-chancellor with the authority of a judge of a court of record, nor was the plea framed on that supposition: that, though ordinarily none but a court of record can punish by fine and imprisonment (*Dr. Bonham's case*, 4 Co. Rep. 355, *Beecher's case*, 8 Co. Rep. 260), yet the mere power to fine and imprison does not per se constitute a court of record: and that the Spinning House was not a legal place of imprisonment,—Bacon's Abridgment, Gaol and Gaolers (A.); and see the 23 H. 8, c. 3, and 5 & 6 W. 1, c. 38 (a).

Sir Fitzroy Kelly, Q. C., O'Malley, Q. C., and Denman, Q. C., in support of the rule, contended in substance as follows:—That the defendant was entitled to a verdict upon the evidence as it stood at the close of the plaintiff's case: that the vice-chancellor acted as a judge of a court of record, though with a limited jurisdiction, and was protected in all he did: and that the objections urged on the part of the plaintiff, whether in an action for false imprisonment, or on a motion for [544] a writ of habeas corpus to discharge the plaintiff from custody, were equally void of foundation,—citing *Grinne v. Poole*, 2 Lutw. 935, 1560, *Greenwell v. Burwell*, 1 Salk. 200, Comb. 76, 1 Lord Raym. 454, Carth. 421, 491, *Godfrey's case*, 11 Co. Rep. 42, *The case of Conspiracy* (*Floyd v. Barker*), 12 Co. Rep. 24, *Bushell's case*, 1 Mod. 119, *Hamard v. Howell*, 1 Mod. 184, 2 Mod. 218, *Mostyn v. Fabrigas*, 1 Cowp. 161, *Cabler v. Halkett*, 3 Moore's P. C. 28, *Tuaffe v. Lord Downes*, 3 Moore's P. C. 36, n., *Doswell v. Impey*, 1 B. & C. 163, 2 D. & R. 350, *Dicas v. Lord Brougham*, 6 C. & P. 249, *Case of the Marshalsea*, 10 Co. Rep. 64, *Houlton v. Smith*, 14 Q. B. 841, *Garnett v. Ferrand*, 6 B. & C. 611, 9 D. & R. 657, *Tosor v. Child*, 7 Ellis & B. 377, *Care v. Mountain*, 1 M. & G. 257, 1 Scott, N. R. 132, *Hutchinson v. Lowndes*, 4 B. & Ad. 118, *Ackerley v. Parkinson*, 3 M. & Selw. 411, *The King v. Barker*, 1 East, 185, *Massey v. Johnson*, 12 East, 67, 82, *Gray v. Cookson*, 16 East, 13, *Brittain v. Kinnaird*, 1 Brod. & B. 433, 4 J. B. Moore, 50, Hawk. P. C., book 2, c. 16, ss. 3, 12, 3 Bl. Com. 24, 25: That the finding that the vice-chancellor

(a) There was a second action arising out of the same transaction, *Erett v. Neville*, which it was arranged should abide the event of *Kemp v. Neville*. Upon the argument of the rule in this case, Naylor (with whom was Hawkins, Q. C.) was heard on behalf of the plaintiff in that case.